LOCAL NEWS

Small businesses face uncertainty as Trump warns of additional tariffs

On Friday, the Supreme Court ruled that Trump overstepped his authority and struck down duties imposed under the national emergency statute.

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President Donald Trump is warning of additional tariffs for any country that "plays games" following a U.S. Supreme Court ruling that limited his authority to impose sweeping trade duties under a national emergency law. Since Friday's decision, Trump has already enacte new tariffs, including a 15% global tax on imports.

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The high court ruled that Trump overstepped his authority with the earlier tariffs, striking down duties imposed under the national emergency statute. The decision did not address whether the government will refund the revenue collected under those tariffs, estimated at $175 billion. A group of U.S. Senate Democrats has introduced legislation that would require the government to return that money with interest.

For small business owners, the changes have created uncertainty. Matthew Amerson, owner of Mayfair Liquors in Denver, said the previous tariffs had already affected the price of imported products like liquor and wine. The tax increase forced some businesses to raise prices or absorb costs.

“Seeing the ups and downs and the roller coaster is just really challenging,” Amerson said. “I feel like we’re just kind of left waiting to hear what happens next.”

Amerson believes even if companies are refunded for the previous tariffs, small businesses are unlikely to see immediate relief. “The distributors in the companies that are selling us wine at those increased prices are sitting on [inventory] that has that built into the price… they’re not going to reduce their prices assuming that they’re getting [that money] back” he said. “I think it could be months or potentially years before we see changes.”

Economics experts say the new 15% tariff may hold, at least for now. Kishore Kulkarni, an economics professor at MSU Denver, said the levy applies to all imports without singling out any particular country, which increases the likelihood it will remain in effect.

“It’s across the board, so no particular country is punished more or less, and therefore it may stand,” Kulkarni said. He added that while the tariff is not a large tax, it still introduces some uncertainty into business planning.

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Amerson said the unpredictability of tariffs makes it difficult for small businesses to plan, affecting both pricing and inventory decisions. “I would like some stability. That’s all I can hope for — a little more consistency and a little more stability," he said. "It’s difficult when tariffs are used as a weapon and as a threat because it’s not to my benefit. It’s not to our customers’ benefit,” he said.

Kulkarni also noted that larger importing companies may benefit from the new tariff rates, which are lower than the 25% previously imposed on some goods, but small businesses remain vulnerable. The Supreme Court’s decision leaves questions about the future of tariff revenue and potential legal challenges. “If somebody takes this case to the Supreme Court, we’ll have to wait to see if the court says whether this is according to the law,” Kulkarni said.

For now, business owners like Amerson are left navigating a market where prices are influenced by everchanging global trade decisions and federal policies. “We are doing

everything we can to keep our prices as low as possible while staying competitive," he said.

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